

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X
RICKARDO CHERUBIN,**Index No.: 514868/2016****Plaintiff,****VERIFIED
AMENDED COMPLAINT****-against-****CITY OF NEW YORK, P.O. ARON BAKSH
and P.O. BERLAND PRINCE,****Defendants.**
-----X

To the above named Defendants:

Plaintiff, RICKARDO CHERUBIN complaining of the defendants CITY OF NEW YORK ("CITY"), Police Officer ARON BAKSH ("BAKSH"), and Police Officer BERLAND PRINCE ("PRINCE") herein, by and through his attorneys SIEGLE & SIMS L.L.P., alleges the following upon information and belief:

1. At all times herein mentioned, defendant CITY was and is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
2. At all times herein mentioned, defendant BAKSH was and is a natural person who was employed by the New York City Police Department and was acting during the course of and in furtherance of his employment therewith.
3. At all times herein mentioned, defendant PRINCE was and is a natural person who was employed by the New York City Police Department and was acting during the course of and in furtherance of his employment therewith.
4. On or about April 8, 2016, before the commencement of this action, a Notice of Claim on behalf of the plaintiff, RICKARDO CHERUBIN was served in writing, sworn to by or on behalf of claimant/plaintiff, by delivering same by personal service upon CITY, which said

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OFFICE OF N.Y. LAW DEPT.
OFFICE OF CORP. COUNSEL
COMMUNICATIONS UNIT

Notice of Claim set forth the name and post office address of claimant and claimant's attorneys, the notice of claim, the time when, the place where, and the manner in which the claims arose and the items of damages or injuries claimed to have been sustained as far as then practicable.

5. Said Notice of Claim was presented and delivered to CITY within ninety (90) days after the claims herein sued upon arose and before the commencement of this action.

6. On July 15, 2016, defendant CITY orally examined plaintiff RICKARDO CHERUBIN and had an opportunity to physically examine RICKARDO CHERUBIN.

7. This action was commenced within one year and ninety days after the causes of action herein arose, thirty (30) days have elapsed since the service of such claims were presented, and CITY has failed and refused to make an adjustment or payment of said claim.

8. On April 4, 2015, at approximately 7:30 p.m., plaintiff was lawfully present inside of an Applebee's restaurant located at 139 Flatbush Avenue, in the County of Kings, City and State of New York.

9. On that date and at that time, defendants BAKSH and PRINCE arrested plaintiff RICKARDO CHERUBIN.

10. During the arrest, defendants BAKSH and/or PRINCE utilized excessive force and caused serious physical injury to plaintiff, including but not limited to a severely comminuted distal humeral fracture of plaintiff's left arm.

11. Plaintiff RICKARDO CHERUBIN had committed no crime, and there was no probable cause to arrest him.

12. Plaintiff did not unlawfully resist the unlawful arrest and took no action which required defendants to utilize physical force in his apprehension.

AS AND FOR A FIRST CAUSE OF ACTION
ASSAULT

13. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 12.

14. The conduct of defendants, their agents, servants and/or employees detailed herein, including the use of force in arresting plaintiff, was done with the intent of placing plaintiff in fear of imminent harmful and offensive conduct and did in fact place plaintiff in fear of imminent harmful and offensive conduct.

15. As a result, plaintiff RICKARDO CHERUBIN suffered physical and mental injuries.

16. As a result thereof, plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts that might otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION
BATTERY

17. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 16.

18. The conduct of defendants, their agents, servants and/or employees detailed herein, including the use of force in arresting plaintiff, was intentional.

19. Plaintiff did not consent to the intentional touching of his body and person.

20. Such conduct by the defendants, their agents, servants and/or employees towards plaintiff constituted offensive bodily contact.

21. Defendants their agents, servants and/or employees conduct in forcibly arresting plaintiff was not reasonable under the circumstances.

22. As a result, plaintiff suffered physical and mental injuries.

23. As a result thereof, plaintiff has been damaged in an amount which exceeds the

jurisdiction of all lower courts that might otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION
FALSE ARREST AND IMPRISONMENT

24. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 23.

25. On April 4, 2016, defendants their agents, servants and/or employees, arrested plaintiff RICKARDO CHERUBIN, handcuffed him, took him into custody, and confined him.

26. Plaintiff RICKARDO CHERUBIN was conscious of the arrest and confinement.

27. Plaintiff RICKARDO CHERUBIN did not consent to the confinement.

28. The arrest and confinement of plaintiff RICKARDO CHERUBIN was not otherwise privileged.

29. The arrest and confinement of plaintiff RICKARDO CHERUBIN was without probable cause.

30. As a result, plaintiff RICKARDO CHERUBIN suffered physical and mental injuries.

31. As a result thereof, plaintiff RICKARDO CHERUBIN has been damaged in an amount exceeding the jurisdictional limits of all lower courts that might otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION
CIVIL RIGHTS PURSUANT TO THE FOURTH AMENDMENT
(EXCESSIVE FORCE)

32. Plaintiff RICKARDO CHERUBIN repeats and reiterates the allegations contained in paragraphs 1 through 31.

33. Defendants BAKSH and PRINCE's actions in forcefully grabbing plaintiff by the arm and slamming him to the floor causing plaintiff to sustain a severely comminuted distal humeral fracture of his left arm, was in violation of the rights guaranteed plaintiff RICKARDO CHERUBIN pursuant to the Fourth Amendment of the United States Constitution.

34. Defendants BAKSH and PRINCE's actions in forcibly arresting plaintiff were not reasonable under the circumstances.

35. The conduct and acts of the defendants BAKSH and PRINCE were performed under the color of state law.

36. As a result of their conduct, Defendants BAKSH and PRINCE violated plaintiff RICKARADO CHERUBIN's civil rights and are liable to plaintiff pursuant to 42 U.S.C. §1983.

37. As a result, plaintiff RICKARDO CHERUBIN suffered physical and mental injuries.

38. As a result thereof, plaintiff RICARDO CHERUBIN has been damaged in an amount exceeding the jurisdictional limits of all lower courts that might otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION
CIVIL RIGHTS PURSUANT TO THE FOURTH AMENDMENT
(FALSE ARREST AND IMPRISONMENT)

39. Plaintiff repeats and reiterates the allegations contained in paragraphs 1 through 38.

40. Defendant BAKSH and PRINCE's conduct in arresting plaintiff without probable cause was in violation of the rights guaranteed plaintiff pursuant to the Fourth Amendment of the United States Constitution.

41. Such conduct was performed under color of state law.

42. As a result of their conduct, defendants BAKSH and PRINCE violated plaintiff's civil rights and are liable to plaintiff pursuant to 42 U.S.C. §1983.

43. As a result, plaintiff suffered physical and mental injuries.

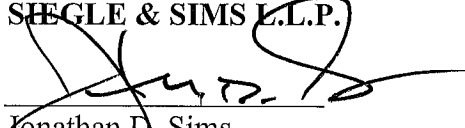
44. As a result thereof, plaintiff has been damaged in an amount which exceeds the jurisdiction of all lower courts that might otherwise have jurisdiction.

WHEREFORE, plaintiff RICKARDO CHERUBIN demands judgment against defendants CITY, BAKSH and PRINCE in a sum in excess of the jurisdiction of all lower courts which might otherwise have jurisdiction for each cause of action alleged, together with the costs and disbursements of this action, including punitive damages and attorneys fees.

Dated: New York, New York
August 11, 2017

Yours, etc.

SIEGLE & SIMS L.L.P.

By: 

Jonathan D. Sims
217 Broadway - Suite 611
New York, NY 10007
(212) 406-0110

ATTORNEY VERIFICATION

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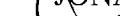
JONATHAN D. SIMS, being duly sworn deposes and says: That he is a member of the firm of SIEGLE & SIMS L.L.P., representing the plaintiff RICKARDO CHERUBIN.

That he has read the attached VERIFIED AMENDED COMPLAINT and the same is true to his own belief, and as to those matters, he believes them to be true to the best of his knowledge.

That deponent's sources of information are a claims file containing statements, reports and records of investigation, parties and witnesses, with which deponent is fully familiar.

That this verification is made by deponent because plaintiff is not in the county where deponent maintains his office.

Dated: New York, New York
August 16, 2017


JONATHAN D. SIMS

Sworn to before me this
16th day of August, 2017



NOTARY PUBLIC

